

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 07/09/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1. 9:00 AM CASE NUMBER: C26-01545
CASE NAME: HUMMINGBIRD DEVELOPMENT LLC VS. AVETEX CONSTRUCTION INC.
HEARING IN RE: ORDER TO SHOW CAUSE REGARDING PRELIMINARY INJUNCTION, TEMPORARY RESTRAINING ORDER
FILED BY:
TENTATIVE RULING:

The Court has received no opposition to the Preliminary Injunction. It is granted.

Law & Motion

2. 9:00 AM CASE NUMBER: C23-01403
CASE NAME: GUPTA VS. NATIONSTAR MORTGAGE

HEARING ON SUMMARY MOTION JUDGMENT

FILED BY: NATIONSTAR MORTGAGE, LLC

TENTATIVE RULING:

The Court continues the hearing on this motion to July 30, 2026, at 9:00 a.m.

3. 9:00 AM CASE NUMBER: C24-00153

CASE NAME: ADRIANNA DUCKETT VS. ROGER CHANG

***HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY THE COURTROOM**

FILED BY:

TENTATIVE RULING:

The Court is in receipt of the Declaration of Fatima Montanez Regarding Disbursement. The Declaration notes that forty-five settlement checks remain uncashed but does not indicate whether any checks were returned undelivered or confirm that it conducted an "Aggrieved Employee Address Search." Upon receipt of confirmation that all efforts to find and distribute funds to Aggrieved Employees previously approved by the Court have been complied with, the Court will approve the final distribution.

4. 9:00 AM CASE NUMBER: C24-02345

CASE NAME: CAROLINE SUN CHANG VS. BMW OF NORTH AMERICA, LLC

***HEARING ON MOTION IN RE: ATTORNEY'S FEES, COSTS, AND EXPENSES**

FILED BY: CHANG, CAROLINE SUN

TENTATIVE RULING:

Pursuant to a settlement agreement, Plaintiff Caroline Sun Change moves for a determination regarding her attorney's fees and costs. Defendants BMW of North America and Import Motors Inc object to the amount sought by Plaintiff. Although Plaintiff appeared to anticipate that Defendants would object to the fees in their entirety, that is not the case. Defendants also object that Plaintiff has not filed a Memorandum of Costs.

The Court noted several issues with Plaintiff's requested attorney's fees. Defendants identified many of these as well. Plaintiff appears to have overbilled in more than one way. The first notable overbilling relates to duplication. Plaintiff tends to bill 0.1 (or more) each to several completely related tasks, thus resulting in rounding up for each of those tasks. For example, Plaintiff bills separately for reviewing different chunks of documents, or for Drafting Special Interrogatories and the Declaration of Necessity.

The second area of overbilling relates to unreasonable amounts of time expended. For example, Plaintiff billed 0.4 (24 minutes) to reviewing each of the Defendant's Answers. These answers contained five pages of semi-substantive but entirely standard information and affirmative defenses. The Court was able to review these Answers in less than three minutes each, and the Court is not a lemon law expert. The disingenuous overbilling that is *easy* to identify renders suspect the other times

listed.

The third area of overbilling involves billing for clerical work. Although it is not always clear what is clerical and what is attorney work, there are certain entries that are clearly clerical, especially when contrasted with time spent on similar tasks billed differently, which are clearly attorney. For example, where Plaintiff bills to “receive” discovery, that could be clerical or attorney, but it becomes clearly clerical when contrasted with the subsequent (substantial) time spent on “review.” Even an attorney in a small firm cannot bill attorney rates for clerical time.

The fourth area is the hardest. Defendant convincingly shows that Plaintiff was essentially non-communicative about settlement at many points, despite the many hours billed to reviewing the settlement. However, the Court is not able to disaggregate the work as Defendant requests.

While there appears to be nothing unusual about this case, the recovery is substantial. Defendants argue that Plaintiff cannot be expected to drag out the litigation and increase fees. The end result for the Plaintiff in payment is very close to the purchase price for the vehicle, and the defects in the vehicle were not catastrophic. So perhaps Plaintiff’s longer attention to the case and resistance to resolution paid off. That does not excuse overbilling, improper billing, or inappropriate malingering, but it does counterbalance, in part, the allegations regarding counsel’s unwillingness to resolve the case and the corresponding billing that occurred.

What cannot be denied is that Plaintiff has overbilled, as even Plaintiff’s exhibits show how high the ultimate request is. It is three to four times the amounts sought in other cases with one exception, and it is higher than that one.

The Court was able to perform analysis as follows and will reduce accordingly.

Clerical work

Date	Description	Original Time	New Time
8/30/2024	Finalize and file lawsuit	0.20	0.10
9/5/2024	Review conformed copies lawsuit, complaint, civil case cover sheet, summons (3 separate tasks)	0.30	0.10
12/30/2024	Receive BMW NA and Concord BMW discovery	0.20	0.00
1/7/2025	Prepare and file CMS ¹	0.50	0.30

¹ This CMS contained a generic statement of the case, a check box for mediation, the least helpful “discovery” information possible, simply listing “written discovery” and “depositions” as “per code,” and a

1/9/2025	Receive document production from defendant ²	0.50	0.00
7/1/2025	Prepare and file CMS	0.50	0.30
7/1/2025	Prepare Deposition with Steno	0.20	0.00
9/5/2025	Receive deposition transcripts and documents from Steno	0.20	0.00
9/20/2025	Review and finalize discovery to be sent out (duplicative of discovery drafting occurring same day)	0.20	0.00
2/9/2026	Review SAR signed by client and send	0.50	0.10
Total		3.30	0.90

Overbilling and Duplication

Date	Description	Original Time	New Time
9/11/2024	Analyze Court's Notice CMC	0.30	0.10
10/14/2024	Analyze BMW's Answer	0.40	0.20
10/28/2024	Analyze Dealership's Answer	0.40	0.20
12/6/2024	Review repair order and update service summary (billed separately)	0.60	0.30
12/27/2024	Review Defendants' Case Management Statement ³	0.50	0.10

note of intent to meet and confer. The non-clerical portion of this could not have taken more than 3 minutes to complete.

² If this were the analysis of the document production, this would duplicate the entries specifically noting the review.

³ Defendant's CMS was not terribly more informative than Plaintiff's, although it did contain some dates for discovery. There is no conceivable way it could take thirty minutes to review this document.

12/30/2024	Initial analysis of BMW's responses to discovery (separately billed for each category, and separate from the actual analysis the next week)	0.40	0.10
12/30/2024	Initial analysis of Dealer's responses to discovery (separately billed for each category, and separate from the actual analysis the next week)	0.40	0.10
1/9/2025	Combined log of individual billing entries for review of document production	5.40	1.50
1/13/2025	Combined log of individual billing entries for reviewing further documents	4.70	1.00
3/24/2025	Review repair order and update service summary (billed separately)	0.60	0.30
3/25/2025	Prepare and serve amended Notice of Deposition	0.30	0.10
3/28/2025	Receipt and review Defendants' verification	0.20	0.10
5/21/2025	Review repair order and update service summary (billed separately)	0.60	0.30
7/1/2025	Prepare and file case Management Statement ⁴	0.50	0.20
7/1/2025	Prepare Notice of Posting of Jury Fees	0.50	0.10

⁴ This Case Management Conference statement actually had two dates added, but nothing else changed from the prior.

7/28/2025	Review repair order and update service summary (billed separately)	0.60	0.30
8/8/2025	Prepare and serve Notice of Deposition	0.30	0.10
10/9/2025	Combined log of individual billing entries for reviewing further documents	2.50	1.10
10/8/2025	Receipt and review BMW's verifications	0.20	0.10
10/13/2025	Review repair order and update service summary (billed separately)	0.60	0.30
1/12/2026	Review Settlement Agreement	0.50	0.30
2/5/2026	Review updated Settlement Agreement	0.50	0.10
Total		20.90	6.90

This represents a reduction by 16.4 hours to 72.2 hours.

The Court has also considered Defendants' objection to counsel's requested hourly fee. The hourly fee does not appear to be unreasonable, given rates for someone with over 20 years of experience.

The final fee award is \$39,710. The Court declines to award fees for reply briefing, given the overbilling. Had Plaintiff not overbilled, it is likely the amount would not have been opposed.

Costs

Defendants also argue that Plaintiff's failure to file a Memorandum of Costs renders her costs requests invalid. Costs are, however, part of settlement agreement and will be awarded as requested.

5. 9:00 AM CASE NUMBER: C25-01252
CASE NAME: SOUTHWOOD FINANCIAL LLC AS TRUST MANAGER FOR SOUTHWOOD FINANCIAL TRUST I VS. JHELLE ROSAROSO
***HEARING ON MOTION IN RE: SET ASIDE CCP 664.6 AND ENTER JUDGMENT**
FILED BY: SOUTHWOOD FINANCIAL LLC AS TRUST MANAGER FOR SOUTHWOOD FINANCIAL TRUST I
TENTATIVE RULING:

Southwood Financial LLC has submitted documents and declarations to support its request to set aside its settlement and enter judgment, pursuant to the Court's retained jurisdiction under CCP § 664.6. The Court received no timely opposition to this request. Upon review of the filing, the Court approves this request and enters judgment. The Court will sign the lodged Proposed Order.

6. 9:00 AM CASE NUMBER: C25-01289
CASE NAME: DEONN MORGAN VS. EAST BAY MUNICIPAL UTILITY DISTRICT (EBMUD)
***HEARING ON MOTION IN RE: DISMISS ACTION FOR FAILURE TO TRANSFER ACTION TO ALAMEDA COUNTY SUPERIOR COURT**
FILED BY: EAST BAY MUNICIPAL UTILITY DISTRICT (EBMUD)
TENTATIVE RULING:

The Court continues the hearing on this motion to July 16, 2026, at 9:00 a.m.

7. 9:00 AM CASE NUMBER: C25-02263
CASE NAME: THOMAS GODDARD VS. 1910 N. MAIN STREET APARTMENTS CAPITAL LLC, A DELAWARE LIMITED LIABILITY COMPANY
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: 1910 N. MAIN STREET APARTMENTS CAPITAL LLC, A DELAWARE LIMITED LIABILITY COMPANY
TENTATIVE RULING:

Dismissal filed July 1. This matter is taken off calendar.

8. 9:00 AM CASE NUMBER: C25-02266
CASE NAME: ASCEND REHAB SERVICES INC. VS. SINDHU JEFFERSON
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLTFS DISCOVERY, SET 1**
FILED BY: ASCEND REHAB SERVICES INC.
TENTATIVE RULING:

Plaintiff Ascend Rehab Services, Inc. has filed a Motion to Compel Further Responses Discovery against Defendant Sindhu Jefferson relating to several Requests for Production of Documents and to one Special Interrogatory. Defendant Jefferson opposes the Motion. The Court has struggled somewhat with this Motion, given that it appears that Defendant Jefferson has provided responses beyond what was attached to Plaintiff's initial Motion papers, but neither party provided these supplemental responses to the Court. The Court will do its best to resolve this dispute on incomplete information.

Procedural Issues

Ascend's initial filing contained declarations that were not sworn to properly. That issue has been

remedied and the Court considers the declaration that now contains the proper information. Defendant Jefferson also notes that Ascend filed a single motion relating to two forms of discovery. There is no prohibition on combining motions to compel. Here, given that there is no breach of the page limitations and the combination appears to be promoting efficiency, the Court sees no procedural problems with this motion.

Substantive Discovery Issues

It appears that Defendant Jefferson failed to include bates numbers or any specific information in responding to the requests for production of documents. It must do so, identifying which produced documents it believes are responsive to each request.

Request for Production of Documents No. 1 - “Produce any and all non-privileged COMMUNICATIONS between YOU and any PRINCIPAL(S) of VerbaCare, Inc. for the period of January 1, 2025 to present.”

This request is extremely overbroad as to its scope. Plaintiff Ascend is not permitted to open up an entire company’s communications simply because of this litigation. The Court will compel responses relating to communications between Defendant Jefferson and VerbaCare principals relating to Plaintiff Ascend for the requested time period. Defendant Jefferson must include text messages in her production.

Request for Production of Documents No. 2 - “Produce any and all non-privileged COMMUNICATIONS between YOU and any EMPLOYEE(S) of VerbaCare, Inc., for the period of January 1, 2025 to the present.”

This request raises the same concerns as the previous, but even more so because it involves employees too. The Court will compel responses relating to communications between Defendant Jefferson and VerbaCare relating to Ascend’s documents, policies, and procedures. Defendant should redact identifying information for the employees. Defendant Jefferson must include text messages in her production.

Request for Production of Documents No. 3 - “Produce any and all non-privileged COMMUNICATIONS between YOU and any current or former EMPLOYEES of ASCEND, for the period of January 1, 2025 to the present.”

Based on the parties’ incomplete documentation and confusing briefing, it is unclear whether anything has been withheld, and if nothing was withheld, why was this request at issue in the pending Motion? If this Request remains in dispute, it is subject to the same limitations as above, in that it must relate to Ascend’s documents, policies, and procedures that are alleged to have been taken without authorization. It must include text messages.

Request for Production of Documents No. 4 - “Produce any and all non-privileged COMMUNICATIONS between YOU and Andrea Herrera for the period of January 1, 2025 to the present.”

Again, based on the parties’ incomplete documentation and confusing briefing, it is unclear whether

anything has been withheld, and if nothing was withheld, why was this request at issue in the pending Motion? If this Request remains in dispute, it is subject to the same limitations as above, in that it must relate to Ascend's documents, policies, and procedures that are alleged to have been taken without authorization. It must include text messages.

Request for Production of Documents No. 6 - "Produce any and all non-privileged COMMUNICATIONS between YOU and any current or former EMPLOYEE(S) of any school district in which Ascend provides services"

This request is extremely overbroad. As the Court understands the relevant dispute, this Request would only be relevant to Defendant Jefferson's efforts to undercut Ascend while she was still an employee of Ascend. With that understanding, the Court compels documents relating to that allegation only.

Request for Production of Documents No. 7 - "Produce any and all non-privileged DOCUMENTS establishing YOUR employment with VerbaCare, Inc."

This is a poorly written and overbroad request. The Court fails to understand whether Ascend lacks any relevant documents at this time.

Request for Production of Documents No. 8 - "Produce any and all non-privileged DOCUMENTS in YOUR possession which REFER OR RELATE TO ASCEND"

Again, based on the parties' incomplete documentation and confusing briefing, it is unclear whether anything has been withheld, and if nothing was withheld, why was this request at issue in the pending Motion? If this Request remains in dispute, it is subject to the same limitations as above, in that it must relate to Ascend's documents, policies, and procedures that are alleged to have been taken without authorization. It must include text messages.

Request for Production of Documents No. 9 - "Produce any and all DOCUMENTS downloaded by YOU from ASCEND during the period of January 1, 2025, to the present."

At this stage, it appears that Ascend is seeking only confirmation that Jefferson has produced all responsive documents. From what the Court could see, this clear statement was lacking from Jefferson's responses and should be delivered.

Request for Production of Documents No. 10 - "Produce any and all non-privileged ELECTRONICALLY STORED INFORMATION in YOUR possession, in its NATIVE FORM, which REFERS OR RELATES TO ASCEND for the period of January 1, 2025 to the present."

At this stage, it appears that Ascend is seeking only confirmation that Jefferson has produced all responsive documents. From what the Court could see, this clear statement was lacking from Jefferson's responses and should be delivered.

Request for Production of Documents Nos. 11-14

Ascend wants additional statements regarding the completeness of Jefferson's production. The Court declines to compel anything further here.

Special Interrogatory No. 1 - "IDENTIFY all ELECTRONIC DEVICES to which YOU downloaded DOCUMENTS that RELATE OR REFER TO ASCEND from January 1, 2024 to the present."

Defendant failed to identify her cell phone and work computer, claiming it was not clear that those were "electronic devices" onto which she could download. The Court disagrees. The answer should be amended to consider all electronic devices, including cellular phones, tablets, and any computers she used.

Sanctions

Ascend's requests were extremely overbroad. Jefferson's responses pleaded ignorance or confusion where none should lie. The Court declines to sanction either party.

9. 9:00 AM CASE NUMBER: C25-02528

CASE NAME: HELEN YU VS. PANLI HUANG

***HEARING ON MOTION IN RE: STRIKE CERTAIN AFFIRMATIVE DEFENSES OF DEFENDANT'S ANSWER
FILED BY: YU, HELEN H.**

TENTATIVE RULING:

The filing of an amended answer mooted the Motion to Strike. The Court will permit this filing. The hearing was vacated and is not currently on calendar. Plaintiff does not require but has permission to file a renewed Motion to Strike, provided Plaintiff makes sufficient attempts to meet and confer prior to submission of such motion.

10. 9:00 AM CASE NUMBER: C25-02528

CASE NAME: HELEN YU VS. PANLI HUANG

**HEARING ON DEMURRER TO: AFFIRMATIVE DEFENSES OF DEFENDANT'S ANSWER
FILED BY: YU, HELEN H.**

TENTATIVE RULING:

The filing of an amended answer mooted the Demurrer The Court will permit this filing. The hearing was vacated and is not currently on calendar. Plaintiff does not require but has permission to file a renewed Demurrer, provided Plaintiff makes sufficient attempts to meet and confer prior to submission of such motion.

11. 9:00 AM CASE NUMBER: N25-1974

CASE NAME: CEDRIC MOORE VS. DAVID LIVINGSTON

HEARING IN RE:

FILED BY:

TENTATIVE RULING:

Petitioner, Cedric B. Moore, filed this writ action against respondent, Sherriff of the County of Contra Costa, to compel respondent to process his application for a permit to carry a concealed weapon ("CCW permit") according to "the standards and requirements of Penal Code §§26150 and 26202."

While respondent has not opposed this writ at this time, he has filed a demurrer, about which petitioner has not engaged in any substantive meet and confer, asserting that the respondent may not file a demurrer. Further, while a merits briefing schedule was set on March 13, respondent was not present for such setting due to some confusion and the courtroom being locked. (See Declaration of Abigail L. Dye in Support of Demurrer, ¶18.)

The Sherriff is permitted to file a demurrer pursuant to Code of Civil Procedure, § 1089 which states, "[o]n the date [...] on which the application for the writ is noticed, [...] the party upon whom the writ or notice has been served may make a return by demurrer, verified answer or both.")]

Still, the filing of a demurrer in place of an opposition is not a typical response and as such, the clerk has calendared the demurrer for hearing in November, leaving some ambiguity as to whether it should be considered an opposition to the petitioner's moving papers or an independent motion that begs its own opposition. The Court is inclined to construe the demurrer as an opposition to the moving papers, but seeks to confirm with the parties that this is aligned with their intentions.

Assuming neither side appears to contest this tentative ruling, the demurrer hearing shall be advanced and the merits hearing continued. Both hearings are re-set for August 13, 2026. If parties agree that no further briefing is needed, they shall file a stipulation to that effect by July 31st. Otherwise, any further oppositions shall be filed by July 31, 2026, and any replies filed by August 6, 2026.

12. 9:00 AM CASE NUMBER: N25-2180
CASE NAME: PETITION OF: ANDREW J. GALL AND SHAWNA L GALL
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: NEIGHBOR TO NEIGHBOR HOMES, LLC
TENTATIVE RULING:

This matter was previously continued to September 3, 2026.

13. 9:00 AM CASE NUMBER: N25-2180
CASE NAME: PETITION OF: ANDREW J. GALL AND SHAWNA L GALL
***HEARING ON MOTION IN RE: SET ASIDE DEFAULT AND DEFAULT JUDGMENT AGAINST QUALITY**
LOAN SERVICE CORPORATION
FILED BY: QUALITY LOAN SERVICE CORPORATION
TENTATIVE RULING:

This matter was previously continued to September 3, 2026.

14. 9:00 AM CASE NUMBER: N25-2495

CASE NAME: CLAIM OF:PARIS WEBSTER, JR.

***HEARING ON MINOR'S COMPROMISE**

FILED BY:

TENTATIVE RULING:

Upon review of the submission, the Court will approve the Compromise. The Court will sign the lodged orders.

15. 9:00 AM CASE NUMBER: N26-1036

CASE NAME: PETITION OF:LION FUEL EXPRESS LLC

HEARING IN RE: PETITION FOR MECHANICS LIEN

FILED BY:

TENTATIVE RULING:

Lion Fuel Express seeks to cancel a mechanic's lien. The lien was recorded March 12, 2026. Civil Code § 8460 requires action to enforce within 90 days. There has been no extension of credit or action to enforce, and more than 90 days have passed. Petitioner gave notice to the lienholder and received a response that the lienholder would respond, but also that the lien was being released. There appears to be no opposition. The Petition is Granted.

Law & Motion

Add On

16. 9:00 AM CASE NUMBER: C25-02266

CASE NAME: ASCEND REHAB SERVICES INC. VS. SINDHU JEFFERSON

***PRELIMINARY INJUNCTION**

FILED BY:

TENTATIVE RULING:

The Court is disappointed that the joint statement reveals no process. This is not a complex dispute. The Court's prior order was clear. Ascend needed to concretely identify any documents that it believed were confidential and accessed or utilized. If Ascend believed that could be done by telephone, it also needed to recognize that the meet and confer process would need to occur over at least two meetings, as Jefferson would need to have a chance to investigate those allegations.

Ascend still has not presented any evidence that documents accessed before Defendant Jefferson left her employment were used for any unlawful or improper purposes. The Court reminds Ascend that it cannot prevent employees from using their learned work experience to compete against it. It cannot impose restrictions on an employee's "ability to practice their profession." (*Edwards v. Arthur Andersen LLP* (2008) 44 Cal.4th 937, 947-948; *AMN Healthcare, Inc. v. Aya Healthcare Services, Inc.* (2018) 28 Cal.App.5th 923, 936; *see also* Bus. & Prof. § 16600.) The question is whether Defendant Jefferson competed with Ascend while employed or whether she used any proprietary secrets to compete with Ascend. (*Mamou v. Trendwest Resorts, Inc.* (2008) 165 Cal.App.4th 686, 719 (restricting use of "proprietary secrets").) While Ascend may restrict the improper use of confidential, proprietary documents and also protect the privacy interests of its employees it cannot succeed on any claim that is based on Defendant Jefferson merely using information she learned throughout her employment.

But before the Court today is not the entirety of the dispute. This preliminary injunction is not addressed to the question of whether Defendant Jefferson breached any duties. Rather, the sole possible scope of this hearing is whether Defendant Jefferson is using any proprietary information at this time, and thus must be stopped.

Exhibit A appears to be the dispute, and although it is hardly more specific than what as before the court back in March, the Court will endeavor to analyze each document:

Human Resources and Employment Documents

1. Human Resources (HR) Documents - Personnel files and HR records

There is no competent evidence that Defendant Jefferson has possessed or accessed such files since her departure from Ascend. Ascend has failed to do more than identify folders and broad categories. To the extent Defendant Jefferson is familiar with rates of pay, retirement contributions, and benefits, that is not information that is generally confidential or a "proprietary secret"—it is information employees generally share with others and that is published in job listings. Ascend has provided no authority to the contrary.

2. Benefits Documents - Internal benefits documentation containing employee benefit information.

This category is subject to the same analysis as category number 1.

3. EASE Enrollment Experience - employee benefits enrollment materials and systems information.

There is no competent evidence that Defendant Jefferson has possessed or accessed such files since her departure from Ascend. There is additionally no information regarding the proprietary nature of this document.

4. Fringe Benefits Frequently Asked Questions – Internal guidance documents regarding Ascend's

employee benefits programs.

There is no competent evidence that Defendant Jefferson has possessed or accessed such files since her departure from Ascend.

5. Ascend All Master List - A document containing the contact information for all of Ascend's past and present employees.

Defendant Jefferson has repeatedly provided sworn statements that she does not have this list and has not had it since she left her employment. There is no competent evidence that Defendant Jefferson has possessed or accessed such files since her departure from Ascend. She has provided plausible explanations for all allegations premised on her possession of this document.

Therapy Resources and Professional Materials

1. Ascend's Entire Library of Employee Field-Therapy Resources – “This includes the complete collection of therapy materials that Ascend developed internally and/or licensed from third parties for Ascend’s confidential use.”

In addition to providing a sworn statement that she did not remove these documents from Ascend, Defendant Jefferson has sworn that her use of the same or similar documents is the result of separate purchases of generally available documents at her new employment.

2. Ascend Employee Handbook

There is no competent evidence that Defendant Jefferson has possessed or accessed such files since her departure from Ascend. Prior to her departure from Ascend she appears to have conveyed it. Ascend has not explained how its employee handbook is proprietary, central to its business, or confidential. Nevertheless, for purposes of the preliminary injunction, Defendant Jefferson does not have it.

Additional Information

1. Employee Compensation Information – alleged to have been learned through her management role

The emails that purport to demonstrate her use of employee compensation information in discussions with VerbaCare discuss “expected” salaries and a single reference to retirement contributions. There is no evidence that, while employed at Ascend, Defendant Jefferson stole the compensation charts and provided them to VerbaCare for use. Rather, she provided some comparisons and *expectations*, all the while noting that VerbaCare, as a start-up, would have its own standards. Once Defendant Jefferson left Ascend, she had no duty of loyalty and was free to use whatever information remained in her head. Ascend cannot claim with a straight face that Defendant Jefferson must clear her mind of all knowledge upon departure. The Court therefore struggles to understand how this could possibly be part of a lawful (and enforceable) preliminary injunction.

2. Contract Terms with School Districts – alleged to have been learned through her employment.

The Court has not found any relevant argument regarding how Defendant Jefferson used her knowledge about contract terms with school districts when she was employed. Again, this is part of Defendant Jefferson's experience as a provider of services and therefore not permitted to be restrained. The Court therefore struggles to understand how this could possibly be part of a lawful (and enforceable) preliminary injunction.

3. Employee contact information – alleged to have never been shared by the contacted employees

Defendant Jefferson has repeated in sworn declarations that she contacted individuals for whom she had contact information *aside* from the "Master List." Any attempt to restrict her recruitment of employees would additionally run afoul of *those* employees ability to be free from restraints on trades.

Conclusion

The Court does not understand what remains to be discussed. The Court will deny any further restraints on this tentative ruling. If Ascend wishes to clarify what it remains concerned about, it can challenge the tentative ruling.